PETITION - POST-NONADJUDICATION PETITION UNDER Sec. 99-15-26(5)

IN THE ..... COURT
(the Mississippi court that granted nonadjudication and entered the dismissal or closure order)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

POST-NONADJUDICATION PETITION UNDER Sec. 99-15-26(5)

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Nonadjudication under Sec. 99-15-26 - expungement after completion and closure", under Miss. Code Ann. Sec. 99-15-26(5).

The compiled Mississippi profile records the substance of this route as follows. The compiled profile records, of the provision that appears in both Sec. 99-15-26(5) and Sec. 99-19-71(4): "Upon petition, the court shall expunge a case where an arrest was made, the person was released, and the case was dismissed, the charges were dropped, there was no disposition, or the person was found not guilty at trial. This appears in both 99-15-26(5) and 99-19-71(4)."

The committed contract records the timing of this route as: relief opens on the later of court-certified completion and the dismissal or closure order.

The committed contract records these conditions on the route: Court-level exclusions; Once only; No trafficking, implied-consent, or DUI misuse.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - is this a completed matter] Is this a completed matter?
.....
.....

[C2 - what is the offense and does an exclusion apply] What is the offense and does an exclusion apply?

.....
.....

[C3 - what court level] What court level?
.....
.....

[C4 - any prior use of nonadjudication] Any prior use of nonadjudication?
.....
.....

[C5 - any dui implied consent or trafficking element] Any DUI, implied consent, or trafficking element?
.....
.....

[C6 - was every requirement completed] Was every requirement completed?
.....
.....

[C7 - is there a dismissal or closure order] Is there a dismissal or closure order?
.....
.....

D. THE REQUEST

The petitioner asks the Court to expunge the record of the matter described above, under Miss. Code Ann. Sec. 99-15-26(5), following completion and the dismissal or closure order.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
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PROPOSED ORDER - POST-NONADJUDICATION PETITION UNDER Sec. 99-15-26(5)

IN THE ..... COURT
(the Mississippi court that granted nonadjudication and entered the dismissal or closure order)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under Miss. Code Ann. Sec. 99-15-26(5). The Court, having considered the petition and anything filed with it,

ORDERS that .....

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED .....

.....
(The court signs here if, and only if, it grants the petition.)

FILING INSTRUCTIONS - POST-NONADJUDICATION PETITION UNDER Sec. 99-15-26(5)

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - POST-NONADJUDICATION PETITION UNDER Sec. 99-15-26(5)

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Nonadjudication under Sec. 99-15-26 - expungement after completion and closure", under Miss. Code Ann. Sec. 99-15-26(5), with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition under Sec. 99-15-26(5); Completion and closure proof; Proposed order. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions and the court that granted nonadjudication decides. The committed contract records this route as separated from ACTIVE ADMISSION into nonadjudication: relief opens on the later of court-certified completion and the dismissal or closure order. Being on nonadjudication is not the same as having finished it.

WHAT YOU DO

- Confirm both anchors have passed: court-certified completion, AND the dismissal or closure order.
- Obtain the completion and closure proof; the committed contract names it as a component of this packet.
- Fill every labelled item from the court record, sign and date the petition personally, and file it with the proposed order.

WHAT YOU DO NOT DO

- Do not file while you are still on nonadjudication. The committed contract records that this route opens on the LATER of completion and the closure order.
- Do not assume a second use is available. The committed contract records 'Once only' as a condition of this route.
- Do not sign the proposed order.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Miss. Code Ann. Sec. 99-19-72 establishes a filing fee for petitions under Sec. 99-19-71.

THIS PETITION IS BROUGHT UNDER SEC. 99-15-26(5), NOT UNDER SEC. 99-19-71. The two sections are not strangers on this route: the same compiled profile records that the operative expungement provision "appears in both 99-15-26(5) and 99-19-71(4)", and this packet prints that on the petition itself. No record this packet binds settles whether the Sec. 99-19-72 fee reaches a petition brought under Sec. 99-15-26(5), and this packet does not decide it in either direction.

So: ask the clerk's office of the Mississippi court that granted nonadjudication and entered the dismissal or closure order what that court charges for this petition before you go, because a filing you cannot pay for is a filing you cannot make. No record this packet binds states a fee waiver for this route, and the office that answers that is the same clerk's office.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the clerk's office of the Mississippi court that granted nonadjudication and entered the dismissal or closure order.

WHEN TO STOP AND GET HELP INSTEAD

- you are still on nonadjudication, or the dismissal or closure order has not been entered;
- you have used nonadjudication before - the committed contract records 'Once only';
- the matter involves DUI, implied consent, or a trafficking element, each of which the committed contract records as excluded from this route;
- the court level may be one the committed contract records as excluded;
- any immigration question is involved.